

25CHCV04059 25CHCV04059

County: los-angeles

Division: Civil Law and Motion

Department: F47

Hearing date: 2026-08-24

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=CHA%2CF47%2C08%2F24%2F2026

Source SHA-256: 17e7a4ffecda8a36e30105a22f981f74e65e64aaef5f8c59149127e141b7bc0c

Case Number: 25CHCV04059 Hearing Date: August 24, 2026 Dept: F47

Dept. F47

Date: 8/24/26

Case #25CHCV04059

DEMURRER TO THE
ORIGINAL COMPLAINT

Demurrer filed on 3/12/26.

MOVING PARTY: Defendants Jetty Alexis Sibrian and Jose
David Godoy

RESPONDING PARTY: Plaintiff HBA Investment LLC

NOTICE: ok

Demurrer is to the 5th cause of action:

1. Negligence
2. Breach of Contract
3. Breach of CC&Rs
4. Fraud

5. Negligent Failure to Disclose

6. Nuisance

RULING: The demurrer is sustained without leave to amend.

SUMMARY OF FACTS & PROCEDURAL HISTORY

This action arises out of the sale of a commercial condominium unit located at 9555 Owensmouth Avenue, Unit 5, Chatsworth, California (the Property) by Defendants Jetty Alexis Sibrian and Jose David Godoy (collectively, Defendants). Plaintiff HBA Investment LLC (HBA) is the current owner of the Property and Plaintiff SOS Distribution LLC (SOS) occupies the Property and conducts business from the location. (Complaint ¶¶8, 10).

On or about 10/7/22, Hamed Bosset-Allen entered into an Agreement and Escrow Instructions for Purchase of Real Estate (Purchase Agreement) to purchase the Property from the Godoy Sibrian Family Living Trust. (Complaint ¶47). Thereafter, Hamed Bosset-Allen assigned his interest in the Purchase Agreement to HBA. (Complaint ¶49). On 10/27/22, Defendants executed grant deeds transferring title to the Property out of their trust to themselves and subsequently transferred title to HBA. (Complaint ¶¶50-51). Both grant deeds were recorded on 12/1/22. (Complaint ¶52). The Purchase Agreement provided that Defendants would lease back the Property until February of 2023. (Complaint ¶48).

Plaintiffs allege that they suffered damages arising from water leaks and roofing issues affecting the Property. Therefore, on 11/17/25, Plaintiffs filed this action against Defendants and others alleging causes of action for: (1) Negligence, (2) Breach of Contract, (3) Breach of CC&Rs, (4) Fraud, (5) Negligent Failure to Disclose and Nuisance. Only the 4th and 5th causes of action are alleged against Defendants by HBA.

After meet and confer efforts failed to resolve the issues Defendants had with Plaintiffs' 5th cause of action, on 3/12/26, Defendants filed and served the instant demurrer to the 5th cause of action for Negligent Failure to Disclose.

HBA has opposed the demurrer and Defendants have filed a reply to the opposition.

ANALYSIS

Timeliness of Demurrer

While CCP 430.40(a) provides that a demurrer may be filed within 30 days after service of a complaint, the Court has discretion to consider a demurrer filed beyond such deadline.

See Jackson (2011) 192 CA4th 742, 749-750; McAllister (2007) 147 CA4th 253, 280-282. Here, the

Court exercises its discretion to consider the demurrer which was filed more than 30 days after service of the complaint was complete. The evidence indicates that the parties were involved in meet and confer efforts and there is no evidence that Plaintiffs suffered any prejudice by the delay in the filing of the demurrer. (See Carlson Reply Decl.).

5th cause of action – Negligent Failure to Disclose

The negligent failure to disclose cause of action falls under the 2 years statute of limitations set forth in CCP 339(1). See Hydro-Mill Co. (2004) 115 CA4th 1145, 1155; Ventura County National Bank (1996) 49 CA4th 1528, 1531.

Here, the complaint alleges that the purchase agreement for the Property was entered on 10/7/22, and that the grant deed transferring title to HBA was executed on 10/7/22 and recorded on 12/1/22 completing the transaction. As such, the alleged failure to disclose by Defendants had to have happened before 12/1/22. Therefore, the 5th cause of action accrued no later than the close of escrow on 12/1/22. Plaintiffs did not file this action until almost 3 years later on 11/17/25 without alleging any facts to support a finding of delayed discovery.

If a complaint shows on its face that a claim may be time-barred, the plaintiff has the burden of pleading specific facts showing delayed discovery. See Fox (2005) 35 C4th 797, 808; E-Fab, Inc. (2007) 153 CA4th 1308, 1319-1320. Even if the delayed discovery rule applied, the allegations in the complaint establish that Plaintiffs were aware that

water intrusion from leaks in the roof caused damage on or about 2/24/23. (Complaint ¶¶12, 32). As such, Plaintiffs were on inquiry notice on

2/24/23. See Norgart (1999)

21 C4th 383, 397-398; Jolly (1988) 44 C3d 1103, 1110-1111. However, Plaintiffs did not file their action until 11/17/25, more than 2 years later.

The argument in the opposition that "Defendants' statute of limitations argument therefore depends upon factual determinations concerning what Plaintiff knew and when Plaintiff knew it, rather than facts appearing on the face of the Complaint" is without merit. (See Opposition, p.5:21-23). In order to rely on the delayed discovery

rule, "a plaintiff whose complaint shows on its face that his claim would be barred without the benefit of the discovery rule must specifically plead facts to show (1) the time and manner of discovery and (2) the inability to have made earlier discovery despite reasonable diligence." Fox, supra. Here, Plaintiffs have not pled facts to support either element. Moreover,

Plaintiffs have alleged that they were aware of damage caused by leaks in the roof by 2/24/23 which triggered the 2 year statute of limitations by putting Plaintiffs in inquiry notice. (Complaint ¶¶12, 32); See Norgart, supra; Jolly, supra. Therefore, at the latest the statute of limitations would have expired on 2/24/25.

Again, the complaint was not filed until several months later on 11/17/25.

Leave to Amend

While leave to amend is normally liberally granted, a plaintiff has the burden of shown a reasonable possibility of curing the defect in the pleading. Blank (1985) 39 C3d 311, 318; Goodman (1976) 18 C3d 335, 349. A generalized request for leave to amend without any proposed supporting facts is insufficient. See Rakestraw (2000) 81 CA4th 39, 43-44. Plaintiffs have offered no such facts in the opposition. Moreover, based on Plaintiffs allegations that damages caused by the claimed roof defects were discovered on 2/24/23, Plaintiffs cannot cure the fact that they failed to file their complaint within 2 years of such discovery which put them on inquiry notice of their claim against Defendants for negligent failure to disclose.

CONCLUSION

The demurrer is sustained without leave to amend.